

An Act

ENROLLED SENATE
BILL NO. 2084

By: Paxton and Jett of the
Senate

and

Hilbert of the House

An Act relating to The Governmental Tort Claims Act; defining terms; limiting settlement awards for wrongful termination claims; providing for inclusion of certain damages; providing for exclusion of certain contributions or wages; providing exceptions to applicability; providing for codification; and providing an effective date.

SUBJECT: The Governmental Tort Claims Act

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 163.1 of Title 51, unless there is created a duplication in numbering, reads as follows:

A. As used in this section:

1. "Faculty member" means any regular faculty member as defined by the applicable policy of the subject institution;

2. "Institution" means any institution within The Oklahoma State System of Higher Education, the governing body of any institution within The Oklahoma State System of Higher Education, an employee of an institution within The Oklahoma State System of Higher Education, and a member of the governing body of any

institution within The Oklahoma State System of Higher Education;
and

3. "Wrongful termination claim" means any claim, cause of action, complaint, grievance, lawsuit, or demand for monetary or equitable relief, arising under state law alleging wrongful termination of an employee.

B. Notwithstanding any provision of law to the contrary, the total amount paid by an institution to a faculty member to resolve a wrongful termination claim under state law, whether by voluntary settlement between the institution and the faculty member, arbitration award, or court judgment, shall not exceed an amount equal to two (2) years of the faculty member's base salary, compensation, or contractual benefit, as of the date of termination. Such limitation shall include, but not be limited to, back pay, compensatory damages, liquidated damages, and any other monetary relief, but shall not include retirement contributions already earned by the faculty member or accrued unpaid wages or leave accrued by the faculty member.

C. The provisions of this section shall not apply to any written contract, whether dated prior to, on, or after the effective date of this act, related to the institution and executed between the institution and an employee of the institution who is not a faculty member as defined in subsection A of this section.

SECTION 2. This act shall become effective November 1, 2026.

Passed the Senate the 26th day of March, 2026.

Presiding Officer of the Senate

Passed the House of Representatives the 6th day of May, 2026.

Presiding Officer of the House
of Representatives

OFFICE OF THE GOVERNOR

Received by the Office of the Governor this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____

Approved by the Governor of the State of Oklahoma this _____

day of _____, 20_____, at _____ o'clock _____ M.

Governor of the State of Oklahoma

OFFICE OF THE SECRETARY OF STATE

Received by the Office of the Secretary of State this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____